

Aakash Soni @ Aakesh Soni v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 January 2020 · WRIT - C No. 927 of 2020 · **Writ disposed; petitioner to appear before the Executive Engineer with objections; speaking final order within four weeks; coercive recovery stayed for seven weeks or till disposal of the objection; liberty to appeal under Electricity Act, 2003 s.127 if aggrieved; citation revives on default of appearance.**

HEADNOTE

A writ seeking to quash a recovery citation of Rs. 5,37,870 and a mandamus to decide the consumer's objection was disposed of without examining the alleged Supply Code, 2005 breach. The High Court directed the petitioner to appear before the Executive Engineer with his objection and evidence, required a speaking final order within four weeks, stayed coercive action for a limited period, and left any challenge to that final order to a Section 127 appeal.

FACTUAL SUMMARY

Aakash Soni challenged a recovery citation dated 24 December 2019 for Rs. 5,37,870 issued against him, and sought a mandamus directing the authorities to decide his objection dated 28 August 2019. He alleged that the electricity department was taking coercive recovery steps without any opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to s.127 after speaking final order

HOLDING

A writ against a recovery citation alleging want of hearing under the Supply Code was not decided on merits. The consumer was directed to appear before the Executive Engineer with his objections and evidence; a speaking final order was to follow within four weeks; coercive action was stayed only for a limited period; and if aggrieved by that final order the consumer was left to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to a recovery citation, the writ was disposed of with liberty to appeal under s.127 if aggrieved. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment Section 127 appeal was expressly reserved against the Executive Engineer's forthcoming final order, not against the existing recovery citation itself. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 24.12.2019 WAS ISSUED IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petitioner alleged want of hearing and non-compliance with the Code; the Court gave a hearing direction without deciding that challenge. ¶ 1

NOT DECIDED — MERITS OR QUANTUM OF THE RS. 5,37,870 DEMAND

¶ 1

